

24STCV31345 24STCV31345

County: los-angeles

Division: Civil Law and Motion

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Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE

RULING

STEPHANIE

ROMINUQUIE,

vs.

WLED

WAZNI, M.D. MEDICAL CORPORATION, et al.

Case No.:

24STCV31345

Hearing Date: July 21, 2026

Defendants Wled Wazni's and Wled Wazni, M.D., Medical Corporation's motion for leave to file a cross-complaint against Plaintiff Stephanie Rominuquie is granted.

Defendants may
separately file the proposed cross-complaint with the Court, deemed filed as of
July 21, 2026.

Defendants

Wled Wazni ("Wazni") and Wled Wazni, M.D., Medical Corporation ("MD Corp") (collectively,
"Defendants") move for an order for leave to file a cross-complaint ("XC")
against Plaintiff Stephanie Rominuquie ("Rominuquie") ("Plaintiff"). (Notice of Motion, pgs.
1-2; C.C.P. §§426.50, 428.50(c).)

Procedural

Background

On November

27, 2024, Plaintiff filed her operative Complaint against Defendants for eleven
causes of action arising from her employment with Defendants.

Defendants

filed the instant motion on May 4, 2026.

Plaintiff filed her opposition on July 8, 2026. Defendants filed their reply on July 14,
2026.

Motion for Leave to Amend

Defendant's

cross-complaint is compulsory if the cause of action "arises out of the same
transaction, occurrence, or series of transactions or occurrences as the cause
of action . . . in [the] complaint." (C.C.P.
§426.10(c).)

A

party make seek leave to file a cross-complaint pursuant to the court's
discretion "at any time during the course of the action." (C.C.P. §428.50(c).) However, a party may not
file a cross-complaint after the entry of a final judgment on the underlying
complaint. (City of Hanford v. Superior Court
(1989) 208 Cal.App.3d 580, 586-587.)

Here,

Defendants' Proposed XC raises causes of action "arises out of the same
transaction, occurrence, or series of transactions or occurrences as the cause

of action . . . in [the] complaint," namely, Plaintiff's conduct during the course of her employment and the actions that led to her termination. (C.C.P. §426.10(c); see Decl. of Sands ¶16, Exh. 1.)

Plaintiff

argues in opposition that Instead of filing a XC in the time prescribed by the Code, Defendants elected to wait until trial was looming to do so, and that this Court should find that Defendants' delay gives rise to a finding of bad faith. (Opposition, pg. 4.) Plaintiff's argument is not well taken. Any challenge to the sufficiency of the proposed XC can be addressed through the normal pleading process after filing and provides no basis for denying leave.

Based

on the foregoing, Defendants' motion for leave to file the proposed XC against Plaintiff is granted.

Conclusion

Defendants'

motion for leave to file their XC against Plaintiff is granted.

Defendants

may separately file the proposed XC with the Court, deemed filed as of July 21, 2026.

Moving Party to give notice.

Dated: July _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court